

M/s Tayal Steels (Pvt.) Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 November 2018 · WRIT - C No. 56967 of 2009 · **Writ dismissed following Dev Prayag Paper Mill.**

HEADNOTE

Challenge to a demand of additional security for electricity supply, and to clause 4.20(1) of the U.P. Electricity Supply Code, 2005 as ultra vires section 47(5) of the Electricity Act, 2003, dismissed in terms of Dev Prayag Paper Mill.

FACTUAL SUMMARY

M/s Tayal Steels challenged a 22 May 2009 demand for additional security for electricity supply. On 29 October 2009 the Court connected the writ with a similar petition and stayed deposit of that security till the next listing; the stay continued on 9 February 2010 after no counter-affidavit was filed. At disposal, counsel accepted that identical challenges to additional security and to clause 4.20(1) of the U.P. Electricity Supply Code, 2005 as ultra vires section 47(5) of the Electricity Act, 2003 had been dismissed in Dev Prayag Paper Mill.

HOLDING-UNITS

INTERPLAY · UP-2005::4.20

additional security

HOLDING

A writ challenging a demand of additional security for supply of electricity, and clause 4.20(1) of the U.P. Electricity Supply Code, 2005 (insofar as it conditions the consumer's option on the licensee's choice) as ultra vires section 47(5) of the Electricity Act, 2003, is dismissed in terms of M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P. (Writ-C No. 30898 of 2016, 21.03.2017). ¶ 2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P. Writ-C No. 30898 of 2016 (decided 21.03.2017)			2	Referred
Writ-C No. 22449 of 2008 order dated 14.11.2018			2	Referred